

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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RANDEL TROTMAN,

Plaintiff,

- against -

LIEUTENANT LOUIS ZANERI,
P.O. TIMOTHY HAGAN, P.O. JACOB MERINO,
SERGEANT FRANK MAIELLO,
P.O. EDWARD LIBASSI, P.O. JAMES LILLA,
P.O. FRANKLIN CARAVELLA and
THE CITY OF NEW YORK,

Defendants.
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08 CV 8066 (WHP)

COMPLAINT AND
JURY TRIAL DEMAND

Plaintiff, RANDEL TROTMAN, by his attorney, ALAN D. LEVINE, ESQ., as and
for his complaint herein, hereby alleges as follows:

JURISDICTION

1. This is a civil action, seeking compensatory damages, punitive damages and attorney's fees.
2. This action is brought pursuant to 42 U.S.C. §§1983 and 1988 and the fourth and fourteenth amendments to the Constitution of the United States.
3. Jurisdiction is founded upon 28 U.S.C. §§1331, 1343 and 1367.
4. Plaintiff, invoking the pendent jurisdiction of this Court, also seeks monetary damages, both compensatory and punitive, as well as attorney's fees, for battery and false arrest.

VENUE

5. Venue is properly alleged in the Southern District of New York in that the acts complained of herein occurred within this District.

JURY TRIAL DEMAND

6. Plaintiff hereby demands a trial by jury of all issues in this action that are so triable.

PARTIES

7. At all times relevant hereto, plaintiff, RANDEL TROTMAN, was and is a natural person, resident in the County, City and State of New York.

8. At all times relevant hereto, defendant LIEUTENANT LOUIS ZANERI (hereinafter "ZANERI") was and is a natural person, employed as a lieutenant by the Police Department of defendant CITY OF NEW YORK.

9. At all times relevant hereto, defendant P.O. TIMOTHY HAGAN ((hereinafter "HAGAN") was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

10. At all times relevant hereto, defendant P.O. JACOB MERINO (hereinafter "MERINO") was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

11. At all times relevant hereto, defendant SERGEANT FRANK MAIELLO (hereinafter "MAIELLO") was and is a natural person, employed as a sergeant by the Police Department of defendant CITY OF NEW YORK.

12. At all times relevant hereto, defendant P.O. EDWARD LIBASSI (hereinafter "LIBASSI") was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

13. At all times relevant hereto, defendant P.O. JAMES LILLA (hereinafter "LILLA") was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

14. At all times relevant hereto, defendant P.O. FRANKLIN CARAVELLA (hereinafter "CARAVELLA") was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

15. At all times relevant hereto, defendant CITY OF NEW YORK was and is a municipal corporation, organized and existing pursuant to the laws of the State of New York.

16. The individual defendants are sued in their individual capacities as well as in their capacities as employees of defendant CITY OF NEW YORK.

17. On or about August 7, 2007, which date was within ninety days of the occurrence complained of herein, plaintiff filed with the Comptroller of the City of New York a verified notice of claim setting forth the time, nature and manner in which said claim arose.

18. More than thirty days have elapsed from the date the aforesaid verified notice of claim was served and the Comptroller has neglected and refused to make payment of said claim.

19. This action is commenced within one year and ninety days from the date that the cause of action herein accrued.

**AS AND FOR A FIRST CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
(42 U.S.C. § 1983)**

20. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "19" hereinabove as if more fully set forth at length

herein.

21. On or about July 5, 2007, at approximately 12:50 A.M., plaintiff was lawfully present at or near the corner of West 155 Street and Bradhurst Avenue, in front of the premises bearing the address of 250 Bradhurst Avenue, in the County, City and State of New York.

22. At the aforesaid time and place, plaintiff had just broken up a fight between two other persons who are not parties to this lawsuit.

23. As plaintiff was standing at the aforementioned location, two or three unmarked New York City Police Department motor vehicles arrived at the scene.

24. The individual defendants exited the aforementioned motor vehicles and, with their guns drawn, ordered plaintiff not to move and to get down.

25. While plaintiff was standing at the aforementioned location, and not offering any resistance or engaging in any illegal activity whatsoever, defendant ZANERI struck plaintiff from behind on his head twice with his service weapon.

26. The force with which plaintiff was struck by defendant ZANERI caused plaintiff to fall to the ground, into a puddle.

27. One or more of the individual defendants handcuffed plaintiff and lifted him up.

28. As a result of the two blows to his head struck by defendant ZANERI, plaintiff was bleeding profusely.

29. An ambulance arrived at the scene.

30. The ambulance attendants informed one or more of the individual defendants that plaintiff should be taken to a hospital.

31. However, plaintiff was put into an unmarked New York City Police Department motor vehicle and driven to the stationhouse of the 32nd Precinct.

32. Among the persons present at the stationhouse was one of the persons involved in the fight that plaintiff had assisted in breaking up.

33. This person informed the individual defendants that plaintiff was not involved in the aforementioned altercation.

34. After further questioning, plaintiff was released from custody, his handcuffs were removed, and he was taken to Harlem Hospital by the same ambulance that had originally attempted to take him to the hospital from the scene of the incident.

35. At the hospital, plaintiff received staples to close the wound to his head.

36. Defendants ZANERI, HAGAN, MERINO, MAIELLO, LIBASSI, LILLA and CARAVELLA violated plaintiff's right to the due process of law guaranteed to him by the fourth and fourteenth amendments of the Constitution of the United States, in that, acting under color of state law, they, without any cause or provocation whatsoever, brutally and severely battered him, falsely placed him under arrest and falsely imprisoned him.

37. Because of the aforesaid acts committed by defendants ZANERI, HAGAN, MERINO, MAIELLO, LIBASSI, LILLA and CARAVELLA, plaintiff suffered a deprivation of the right to the due process of law guaranteed to him by the fourth and fourteenth amendments to the Constitution of the United States, and, as a result, suffered a loss of liberty, suffered and continues to suffer serious and permanent physical and emotional injuries, and has incurred expenses for medical treatment.

38. By reason of the unconstitutional and illegal actions taken against him by

defendants ZANERI, HAGAN, MERINO, MAIELLO, LIBASSI, LILLA and CARAVELLA, plaintiff has been damaged in the amount of One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$1,000,000.00) Dollars as punitive damages against defendants ZANERI, HAGAN, MERINO, MAIELLO, LIBASSI, LILLA and CARAVELLA.

**AS AND FOR A SECOND CAUSE OF ACTION
AGAINST DEFENDANT ZANERI AND THE CITY OF NEW YORK
(Battery)**

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "38" hereinabove as if more fully set forth at length herein.

40. On or about July 5, 2007, at approximately 12:50 A.M., in the roadway near the corner of West 155 Street and Bradhurst Avenue in front of the premises bearing the address of 250 Bradhurst Avenue in the County, City and State of New York, defendant ZANERI, without probable cause, offensively touched plaintiff by striking him over the head with his service weapon with such force as to open a wound in plaintiff's head that caused profuse bleeding and required stapling to close.

41. The aforesaid force used by defendant ZANERI was not reasonable under the circumstances.

42. At the aforesaid time and place, defendant ZANERI was acting within the scope of his employment by defendant CITY OF NEW YORK.

43. By reason of the aforesaid battery committed against him by defendant ZANERI, while he was acting within the scope of his employment by defendant CITY OF NEW YORK, plaintiff suffered and continues to suffer serious and permanent

physical and emotional injuries and has incurred expenses for medical treatment.

44. As a result of the battery committed against him by defendants ZANERI, while he was acting within the scope of his employment by defendant CITY OF NEW YORK, plaintiff has been damaged in the sum of One Million (\$1,000,000.00) Dollars and seeks an additional One Million (\$1,000,000.00) Dollars as punitive damages against defendant ZANERI.

**AS AND FOR A THIRD CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK
(False Arrest)**

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "44" hereinabove as if more fully set forth at length herein.

46. On or about July 5, 2007, at approximately 12:50 A.M., in the roadway near the corner of West 155 Street and Bradhurst Avenue in front of the premises bearing the address of 250 Bradhurst Avenue in the County, City and State of New York, without probable cause, one more of the individual defendants to this action forcible and unlawfully arrested plaintiff and, against plaintiff's own free will and contrary to the stated request of an emergency medical technician, caused plaintiff to be transported to the stationhouse of the 32nd Precinct and to be incarcerated thereat for several hours.

47. At the time they committed the aforesaid acts of false arrest and false imprisonment, the individual defendants were acting within the scope of their employment by defendant CITY OF NEW YORK.

48. By reason of the false arrest and false imprisonment committed against him by one or more of the individual defendants hereto, while they were acting within the scope of their employment by defendant CITY OF NEW YORK, plaintiff suffered a loss of his liberty and continues to suffer serious and permanent physical and emotional injuries and has incurred expenses for medical treatment.

49. As a result of the aforesaid acts of false arrest and false imprisonment committed against him by one or more of the individual defendants hereto while they were acting within the scope of their employment by defendant CITY OF NEW YORK, plaintiff has been damaged in the sum of One Million (\$1,000,000.00) Dollars and seeks an additional One Million (\$1,000,000.00) Dollars as punitive damages against the individual defendants.

WHEREFORE, plaintiff, RANDEL TROTMAN, demands judgment against defendants, LIEUTENANT LOUIS ZANERI, P.O. TIMOTHY HAGAN, P.O. JACOB MERINO, SERGEANT FRANK MAIELLO, P.O. EDWARD LIBASSI, P.O. JAMES LILLA, P.O. FRANKLIN CARAVELLA and THE CITY OF NEW YORK, as follows:

FIRST CAUSE OF ACTION: One Million (\$1,000,000.00) Dollars compensatory damages against the individual defendants plus One Million (\$1,000,000.00) Dollars as punitive damages;

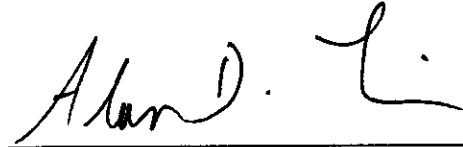
SECOND CAUSE OF ACTION: One Million (\$1,000,000.00) Dollars compensatory damages plus One Million (\$1,000,000.00) Dollars as punitive damages against defendant ZANERI;

THIRD CAUSE OF ACTION: One Million (\$1,000,000.00) Dollars compensatory damages plus One Million (\$1,000,000.00) Dollars as punitive damages

against the individual defendants.

In addition, plaintiff demands the costs and disbursements of this action, including his attorney's fees, pursuant to 42 U.S.C. §1988.

Dated: Kew Gardens, New York
September 17, 2008

A handwritten signature in black ink, appearing to read "Alan D. Levine". The signature is fluid and cursive, with a horizontal line drawn underneath it.

ALAN D. LEVINE
Attorney for Plaintiff
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File No.: 2072